



## DECISION

Complaint No. : POS/5052/KE-943/2025

Name and Address of the Complainant : Mr. Muhammad Javed, R/o. Plot No. 11, Sheet No 35-P/1, Near Char Minar Chowrangi, Bahadurabad, Karachi.

Name of the Agency Complained against : TMC Jinnah Town / District Admn. East

Name & Designation of Investigation Officer : Syed Farrukh Habib  
Director, Regional Office, Karachi (East)

Subject :-

**ALLEGED INACTION ON THE APPLICATIONS MADE FOR REMOVAL OF ENCROACHMENT FROM THE FOOTPATH MADE BY OWNER OF FOOD BREAK (TENANTS) CAUSING HINDRANCE IN SMOOTH / EASY MOVEMENT OF THE RESIDENTS.**

### **THE COMPLAINT**

Mr. Muhammad Javed, in his complaint dated 05.08.2025, stated that he is lawful co-owner and duly constituted attorney of other co-owners of the building known as "Miraj Manzil", constructed on Plot No. 11, Survey Sheet No. 35-P/1, Survey No. 28, measuring 321 square yards, situated at central commercial area, Bahadurabad, Karachi, consisting of shops on the ground floor, mezzanine floor, and flats where his family members and other tenants reside. His tenants, Mr. Muhammad Asim Zafar Soleja and Mr. Muhammad Anas Zafar Soleja, operating a fast-food business under the name "Food Break" at Shops No. 1 and 2 on the ground floor and the mezzanine floor, have unlawfully encroached upon the footpath by placing counters, fryers, Bar B.Q cooking equipment, chillers, gas cylinders, etc. Furthermore, they have rented out the front/roadside area of the building to pushcart (thela) owners and rehri operators and are collecting rent from them.

2. These encroachments cause obstruction and hardship to him as well as the other residents of the building, neighbors, and pedestrians, severely affecting smooth movement on footpaths and roads and creating nuisance and safety concerns. The tenants, their staff, and associates are also causing hurdles for the residents in using the passages and access within the building. He, therefore, solicited intervention of this office in the matter.

### **PROCEEDINGS**

3. After admission of complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, (amended up to date), as well as after receiving mandatory Affidavit on Form "A" and other relevant documents, report was called from the Agency. In response, Director, Anti-Encroachment, Town Municipal Corporation (TMC) Jinnah, District East, Karachi, vide letter dated 10.10.2025, stated that an anti-encroachment operation was conducted on 07.10.2025 to remove the encroachments made by Food Break. All items placed by Food Break on the footpath were removed and confiscated, and encroachments made by neighboring shops were also cleared. The department further issued a clear warning to the owner of Food Break not to place any items on the footpath in the future.

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4. In the hearing held on 23.10.2025, attended by Mr. M. Javed (Complainant) and Mr. Saqib Mustafa Town Officer, Estate & Anti-Encroachment, TMC Jinnah, the agency's representative furnished pictures of encroachment removal. He further informed that there also existed a dispute between the complainant and his tenant/proprietor of the fast food outlet M/s. FOOD BREAK, and a case regarding possession and use of the premises, was being adjudicated by the Sindh High Court, in addition to another case pending trial in the court of Xth Rent Controller Karachi East.

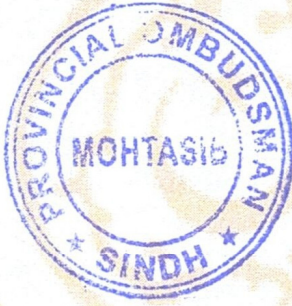
**FINDING**

5. As a result of intervention and pursuance of this Institution complainant's grievance of encroachment in front of his building on footpath has been resolved

**DECISION**

6. In view of above, the complaint stands disposed of as redressed.

*Given under my hand and seal of the office*



*Sd /-*

(Muhammad Sohail Rajput)

*Sitara-e-Imtiaz*, PAS

Ombudsman Sindh

Karachi, dated 25-11 - 2025